

Daniel Hill

Our ref: EIR2026/09364

danielmartinhill@gmail.com

Date: 28 April 2026

Dear Daniel Hill,

RE: Environmental Information Regulations: EIR2026/09364

Thank you for your requests for information regarding the Environment Agency's Flood and Coastal Risk assets, which we received on 10 February 2026.

I apologise for the delay in responding to your request.

We respond to requests for information that we hold under the Environmental Information Regulations 2004 (EIR). The Regulations requires that we respond to requests by advising you whether information is held or not, and if so by providing you with that information.

The Regulations allow us to aggregate information requests when the following conditions apply.

- The requests are received are within a period of 60 consecutive working days
- There are multiple requests from one person, and
- The requests relate substantially to the same subject matter.

We have aggregated your two requests on this subject, and we are providing this single response.

You requested the following data from the Asset Information Management System (AIMS) for all flood defence assets.

- 1 For all condition inspections recorded in the last 10 financial years
 - 1.1 Asset ID (as used in the published spatial flood defences open data release)
 - 1.2 Inspection date
 - 1.3 Overall condition grade (1 to 5)
 - 1.4 element level condition grades, where recorded and if applicable
 - 1.5 any data quality flag associated with the inspection
- 2 For all condition inspections recorded in the last 10 financial years
 - 2.1 Asset ID (as used in published spatial flood defences open data)
 - 2.2 Target condition grade (the FCRM target condition of the asset)
 - 2.3 Below required condition flag (whether the asset is currently flagged as below its target condition)
 - 2.4 For assets flagged as below required condition, the repair deadline date, and whether action has been agreed by an engineer
 - 2.5 year of last refurbishment or capital investment (where recorded beyond the

field in the open data release)

Information provided

A spreadsheet is enclosed providing information for the following sections of your request, where held:

- 1.1 and 1.2
- 1.3*
- 2.1
- 2.2*
- 2.3*
- 2.4*
- 2.5*

*some data has been redacted for these sections as set out below under 'Information Withheld'.

Please refer to the [Open Government Licence](#) which explains the permitted use of this information.

Information not held

We do not hold data quality flags associated with the inspections as set out in question 1.5.

EIR Regulation 3(2) states that information is held if it is in our possession and has been produced or received by us, or it is held by another person on our behalf at the time the request is received.

Where a request is for environmental information, the Regulations allow us to refuse to disclose it if the exception at EIR Regulation 12(4)(a) applies. The regulation states that a public authority may refuse to disclose environmental information to the extent that it does not hold that information when an applicant's request is received.

Information withheld: EIR exception 12(5)(a)

In answering questions 1.3, 2.2, 2.3, 2.4 and 2.5 we have redacted information relating to

- Assets where we consider that there is legitimate public interest in withholding their condition. Redacted information will be shown as 888.
- All information requested under 1.4 – element condition grades.

We are withholding this information on the grounds that its disclosure into the public domain would adversely affect national security and public safety.

EIR exception 12(5)(a) International relations, public safety & national security applies.

As a public body under EIR, we must provide reasons for this refusal. We also share how we have considered the Public Interest for refusal and disclosure. You can find details in the appendix.

Information withheld: EIR exception 13(1) and GDPR

We are also redacting data for questions 1.3 and 2.2, 2.3, 2.4 and 2.5 where the asset is owned or maintained by a third party. Redacted information will be shown as 999.

We cannot provide this data because it is personal data of the private asset maintainer. This data may contain personal data as defined under the Data Protection Act 2018 (DPA 2018) and to disclose it would breach the First Data Protection Principle of the DPA 2018.

The information requested is therefore exempt due to Regulation 13(1) of the Environmental Information Regulations 2004, which explains that:

“To the extent that the information requested includes personal data of which the applicant is not the data subject, a public authority must not disclose the personal data if—

(a) the first condition is satisfied...”

The ‘first condition’ referred to above is further explained in Regulation 13(2A):

“The first condition is that the disclosure of the information to a member of the public otherwise than under these Regulations— (a) would contravene any of the data protection principles...”

In this case it would be unfair to disclose information relating to an identifiable individual as such individuals have a reasonable expectation that such any information held about them by the Environment Agency would remain confidential.

There is no requirement to conduct a separate public interest test where the refusal relates to the exception for personal data as is the case when considering other exceptions to disclosure. However, there is an inherent public interest test when considering whether the disclosure of personal data would be a breach of data protection legislation which balances the competing interests of privacy and transparency.

Data notes

Understanding Target Condition

- Most of our assets are assigned a target condition of 3 (Fair).
- All of our flood risk management assets are assigned a condition grade between 1 and 5. This grade is based on scientific research, international experiences, analysis of past failures and evidence from previous floods.

- These findings show that there is little improvement in the performance of the asset in moving them from a condition grade 3 to a condition grade 2 (Good). The research concludes that in most circumstances a condition grade of 3 should normally be the target condition.

Visual Asset Inspection Process

- We assess the condition of flood defence assets at a frequency rate based on risk, taking account of factors such as the status, nature, and significance of the flood defence.
- A visual asset inspection looks at the asset by breaking it down into elements, with each element given a weighting which reflects the importance of that element to the overall condition of the asset.
- Asset Inspections are undertaken by trained and competent inspectors. These inspections are moderated frequently to ensure that we have a consistent approach.
- Please note that “completion date” refers to the inspection date.
- The dataset provided can show the same asset ID over multiple lines, this refers to numerous inspections carried out over ten or more years.

Below Required Condition (BRC)

- When an asset is listed as below required condition it does not mean that they have structurally failed, or that performance in a flood is compromised.
- If the performance of an asset is reduced, then action will be taken to ensure that flood risk continues to be effectively managed until the asset is fully repaired or replaced and meets the required condition.
- The Environment Agency routinely inspects both Environment Agency and third-party defences. The Environment Agency has management processes, systems, and controls to effectively manage our assets through their whole life cycle.

Rights of appeal

If you are not satisfied with our decision, you can contact us within two calendar months to ask for the decision to be reviewed. We will then conduct an internal review of our response to your request and give you our decision in writing within 40 working days.

If you are not satisfied with the outcome of the internal review, you can then make an appeal to the Information Commissioner Office, the statutory regulator for the Environmental Information Regulations 2004 and the Freedom of Information Act 2000. Please follow this link to the [ICO online complaints portal](https://ico.org.uk/online-complaints-portal/). The address is: Information Commissioner's Office, Wycliffe House, Water Lane, Wilmslow, Cheshire. SK9 5AF.

Tel: 0303 123 1113 (local rate) or 01625 545 745 (national rate) | Fax: 01625 524 510 Email: icocasework@ico.org.uk | Website: www.ico.org.uk

Yours sincerely,

National Requests

To report environmental problems please visit www.gov.uk/report-environmental-problem or call the incident hotline on 0800 80 70 60

Please tell us how we did

To help improve your experience as a customer we are currently gathering feedback. If you would like to take part in a short customer satisfaction survey, please click the link below:

[Environment Agency FOI Customer Satisfaction Survey](#)

Appendix

Relevant exceptions

The exceptions that apply to the withheld information are:

12(5)(a) International relations, public safety & national security

'A Public authority may refuse to disclose information to the extent that its disclosure would adversely affect - (a) international relations, defence, national security or public safety'.

The Public Interest Test

We have weighed the public interest factors in favour of maintaining the exceptions and find that they outweigh the public interest factors in disclosing the information. In carrying out the public interest test we have considered:

1. Factors in favour of releasing the information

- Openness, transparency and accountability - We understand that disclosure of information held by public authorities promotes transparency.
- We publish information unless we consider there to be a strong risk in doing so.

2. Factors in favour of withholding the information:

Rationale for applying exception 12(5)(a)

- Changes in Government Security Classifications in 2014 promoted a review of the security arrangements for sensitive information relating to reservoirs and strategically important assets, prompting the release of the National Protocol for the Handling, Transmission and Storage of Reservoir transmission and Storage of Reservoir Flood (Inundations) Maps for England and Wales.
- When developing this protocol, consideration was also given to the other information (such as engineer inspection reports) where controls are necessary to protect against malicious threats to reservoir safety, and to guide the disclosure of withholding of information.
- In line with this guidance, we do not disclose granular-level details about the condition of our assets (such as element-level condition grades) as this information could be used maliciously to endanger public safety.

As indicated, upon assessing the factors in the public interest test, we find that the factors in favour of withholding information outweigh the public interest factors in disclosing the information.